

House File 928

H-1155

1 Amend House File 928 as follows:

2 1. Page 1, before line 1 by inserting:

3 <Section 1. Section 43.49, subsection 1, unnumbered
4 paragraph 1, Code 2025, is amended to read as follows:

5 On the ~~Monday~~ or Tuesday following the primary election, the
6 board of supervisors shall meet, open, and canvass the returns
7 from each voting precinct in the county, and make abstracts
8 thereof, stating the following:

9 Sec. _____. Section 43.56, subsection 2, Code 2025, is amended
10 by striking the subsection.

11 Sec. _____. Section 46.24, subsection 1, Code 2025, is amended
12 to read as follows:

13 1. A judge of the supreme court, court of appeals, or
14 district court including a district associate judge, full-time
15 associate juvenile judge, or full-time associate probate judge,
16 or a clerk of the district court must receive more affirmative
17 than negative votes to be retained in office. When the poll
18 is closed, the election judges shall publicly canvass the vote
19 forthwith. The board of supervisors shall canvass the returns
20 on the ~~Monday~~ or Tuesday after the election, and shall promptly
21 certify the number of affirmative and negative votes on each
22 judge or clerk to the state commissioner of elections.

23 Sec. _____. Section 50.21, subsection 1, Code 2025, is amended
24 to read as follows:

25 1. The commissioner shall reconvene the election board of
26 the special precinct established by [section 53.20](#) not earlier
27 than noon on the second day following each election which
28 is required by law to be canvassed on the ~~Monday~~ or Tuesday
29 following the election. If the second day following such an
30 election is a legal holiday the special precinct election board
31 may be convened at noon on the day following the election, and
32 if the canvass of the election is scheduled at any time earlier
33 than the ~~Monday~~ Tuesday following the election, the special
34 precinct election board shall be reconvened at noon on the day
35 following the election.

1 Sec. _____. Section 50.24, subsections 1 and 4, Code 2025, are
2 amended to read as follows:

3 1. The county board of supervisors shall meet to canvass
4 the vote on the first ~~Monday or~~ Tuesday after the day of
5 each election to which [this chapter](#) is applicable, unless
6 the law authorizing the election specifies another date for
7 the canvass. If that ~~Monday or~~ Tuesday is a public holiday,
8 section 4.1, subsection 34, controls.

9 4. For a regular or special city election or a city runoff
10 election, if the city is located in more than one county, the
11 controlling commissioner for that city under [section 47.2](#) shall
12 conduct a second canvass on the second ~~Monday or~~ Tuesday after
13 the day of the election. However, if a recount is requested
14 pursuant to [section 50.48](#), the controlling commissioner shall
15 conduct the second canvass within two business days after the
16 conclusion of the recount proceedings. Each commissioner
17 conducting a canvass for the city pursuant to [subsection 1](#)
18 shall transmit abstracts for the offices and public measures of
19 that city to the controlling commissioner for that city, along
20 with individual tallies for each write-in candidate. At the
21 second canvass, the county board of supervisors of the county
22 of the controlling commissioner shall canvass the abstracts
23 received pursuant to [this subsection](#) and shall prepare a
24 combined city abstract stating the number of votes cast in the
25 city for each office and on each question on the ballot for
26 the city election. The combined city abstract shall further
27 indicate the name of each person who received votes for each
28 office on the ballot, the number of votes each person named
29 received for that office, and the number of votes for and
30 against each question submitted to the voters at the election.
31 The votes of all write-in candidates who each received less
32 than five percent of the total votes cast in the city for
33 an office shall be reported collectively under the heading
34 "scattering".

35 Sec. _____. Section 50.24, subsection 5, paragraph a, Code

1 2025, is amended to read as follows:

2 a. For a regular or special school election, if the school
3 district is located in more than one county, the controlling
4 commissioner for that school district under [section 47.2](#) shall
5 conduct a second canvass on the second ~~Monday~~ or Tuesday after
6 the day of election. However, if a recount is requested
7 pursuant to [section 50.48](#), the controlling commissioner shall
8 conduct the second canvass within two business days after the
9 conclusion of the recount proceedings. Each commissioner
10 conducting a canvass for the school district pursuant to
11 subsection 1 shall transmit abstracts for the offices and
12 public measures of that school district to the controlling
13 commissioner for that school district, along with individual
14 tallies for each write-in candidate. At the second canvass the
15 county board of supervisors of the controlling county shall
16 canvass the abstracts received pursuant to [this subsection](#) and
17 shall prepare a combined school district abstract stating the
18 number of votes cast in the school district for each office and
19 on each question on the ballot for the school election. The
20 combined school district abstract shall further indicate the
21 name of each person who received votes for each office on the
22 ballot, the number of votes each person named received for that
23 office, and the number of votes for and against each question
24 submitted to the voters at the election. The votes of all
25 write-in candidates who each received less than five percent of
26 the total votes cast in the school district for an office shall
27 be reported collectively under the heading "scattering".>

28 2. Page 1, lines 9 and 10, by striking ~~<day second Wednesday~~
29 following the ~~county board's canvass of the~~ and inserting <day
30 following the county board's canvass of the>

31 3. Page 1, line 15, by striking ~~<one percent or less>~~
32 and inserting ~~<less than either one percent or fifty votes,~~
33 whichever is lesser>

34 4. Page 1, line 29, by striking ~~<second Wednesday following>~~
35 and inserting <day following the county board's canvass of>

1 5. Page 1, line 34, by striking <one percent or less> and
2 inserting <less than fifteen hundredths of one percent for the
3 election or nomination of a candidate for a statewide elected
4 office or federal office, or less than either one percent or
5 fifty votes, whichever is lesser, for all other elections or
6 nominations>

7 6. By striking page 2, line 18, through page 3, line 11, and
8 inserting:

9 <Sec. _____. Section 50.48, subsection 2, Code 2025, is
10 amended by striking the subsection.>

11 7. Page 3, line 22, by striking <the commissioner, the
12 commissioner's>

13 8. Page 3, by striking lines 23 and 24 and inserting <the
14 commissioner and the commissioner's staff. The commissioner
15 may assign persons employed by the commissioner to tally
16 ballots during the election as members of the recount
17 board. If the commissioner assigns persons employed by the
18 commissioner to tally ballots during the election as members of
19 the recount board to recount an election for a partisan office,
20 the commissioner shall assign an equal number of persons from
21 each political party.>

22 9. Page 4, by striking lines 3 through 5 and inserting
23 <of the recount in each county where the recount is being
24 conducted. A candidate may replace an observer appointed by
25 the candidate at any time.>

26 10. Page 4, line 16, by striking <If automatic tabulating>
27 and inserting ~~<If automatic tabulating>~~

28 11. Page 4, by striking lines 17 and 18 and inserting
29 ~~<equipment was used to count the ballots, the recount board may~~
30 ~~request the commissioner to retabulate the ballots using>~~

31 12. Page 4, line 19, by striking <the automatic tabulating
32 equipment.> and inserting ~~<the automatic tabulating equipment.>~~

33 13. Page 4, by striking lines 22 through 25 and inserting <A
34 recount shall be conducted by the use of automatic tabulating
35 equipment, except that the state commissioner, for an election

1 for a member of the general assembly, or commissioner, for a
2 local elective office, may direct that an election be conducted
3 by hand due to extraordinary circumstances. The same method
4 of conducting the recount shall be used in each precinct where
5 the recount is conducted. The commissioner shall make all
6 pieces of automatic tabulating equipment available for use in
7 the recount.>

8 14. Page 5, line 8, by striking <subsection> and inserting
9 <subsections>

10 15. Page 5, line 9, by striking <commissioner> and inserting
11 <recount board>

12 16. Page 5, line 12, after <recount> by inserting <in a
13 county>

14 17. Page 5, after line 20 by inserting:

15 <NEW SUBSECTION. 10. Before a recount board has issued its
16 final report, the candidate or person who requested the recount
17 may reach an agreement with the apparent winner to accept the
18 results of the original canvass by submitting the agreement in
19 writing to each recount board that is conducting the recount.
20 Upon receipt of the agreement, the recount boards shall cease
21 their work and report to each county commissioner in a county
22 where the recount is being conducted that the results of the
23 original canvass are the official results.

24 Sec. _____. Section 50.49, subsection 1, Code 2025, is amended
25 to read as follows:

26 1. A recount for any public measure shall be ordered by the
27 board of canvassers if a petition requesting a recount is filed
28 with the state commissioner for a public measure voted on by
29 the electors of the entire state, or the county commissioner
30 for all other public measures, not later than three days after
31 the completion of the canvass of votes for the election at
32 which the question appeared on the ballot and the abstracts
33 prepared pursuant to section 50.24 indicate that the difference
34 between the affirmative and negative votes cast on the public
35 measure is less than fifteen hundredths of one percent for a

1 public measure voted on by the electors of the entire state,
2 or less than either one percent or fifty votes, whichever is
3 lesser, for all other public measures. The petition shall be
4 signed by the greater of not less than ten eligible electors or
5 a number of eligible electors equaling one percent of the total
6 number of votes cast upon the public measure. Each petitioner
7 must be a person who was entitled to vote on the public measure
8 in question or would have been so entitled if registered to
9 vote.

10 Sec. _____. Section 50.49, subsection 4, Code 2025, is amended
11 by striking the subsection.

12 Sec. _____. Section 50.50, Code 2025, is amended to read as
13 follows:

14 **50.50 Administrative ~~recounts~~ audits.**

15 1. The commissioner who was responsible for conducting an
16 election may request an administrative ~~recount~~ audit when the
17 commissioner is informed or suspects that voting equipment used
18 in the election malfunctioned or that programming errors may
19 have affected the outcome of the election, or if the precinct
20 election officials report counting errors to the commissioner
21 after the conclusion of the canvass of votes in the precinct.
22 An administrative ~~recount~~ audit shall be conducted by the board
23 of the special precinct established by [section 53.23](#). ~~Bond~~
24 ~~shall not be required for an administrative recount.~~ The
25 state commissioner may adopt rules for administrative ~~recounts~~
26 audits.

27 2. ~~If the recount board finds that there is an error~~
28 ~~in the programming of any voting equipment which may have~~
29 ~~affected the outcome of the election for any office or public~~
30 ~~measure on the ballot, the recount board shall describe the~~
31 ~~errors in its report to the commissioner. The commissioner~~
32 ~~shall notify the board of supervisors. The supervisors shall~~
33 ~~determine whether to order an administrative recount for any~~
34 ~~or all of the offices and public measures on the ballot. Each~~
35 political party, as defined in section 43.2, may appoint up

1 to five observers to witness an audit conducted pursuant to
2 this section. The observers shall be appointed by the county
3 chairperson or, if the county chairperson fails to make an
4 appointment, by the state chairperson. However, if either or
5 both political parties fail to appoint an observer, the board
6 may continue with the proceedings.>

7 18. Page 6, by striking lines 5 through 24.

8 19. Page 7, after line 13 by inserting:

9 <Sec. _____. Section 60.2, Code 2025, is amended to read as
10 follows:

11 **60.2 Clerk.**

12 ~~The secretary of state clerk of the supreme court shall be~~
13 ~~the clerk of the court, or, in the secretary of state's absence~~
14 ~~or inability to act, the clerk of the supreme court.>~~

15 20. Page 7, after line 31 by inserting:

16 <Sec. _____. Section 61.2, Code 2025, is amended to read as
17 follows:

18 **61.2 Clerk.**

19 ~~The secretary of state clerk of the supreme court shall be~~
20 ~~the clerk of this court; but if the person holding that office~~
21 ~~is a party to the contest, the clerk of the supreme court, or,~~
22 ~~in case of that person's absence or inability, the auditor of~~
23 ~~state shall be clerk.>~~

24 21. Page 8, lines 29 and 30, by striking <five district
25 judges> and inserting <a district court judge from the judicial
26 district where the county election is being contested>

27 22. Page 9, after line 20 by inserting:

28 <Sec. _____. Section 260C.15, subsection 5, Code 2025, is
29 amended to read as follows:

30 5. The votes cast in the election shall be canvassed and
31 abstracts of the votes cast shall be certified as required by
32 section 277.20. In each county whose commissioner of elections
33 is the controlling commissioner for a merged area under section
34 47.2, the county board of supervisors shall convene on the
35 second ~~Monday~~ or Tuesday after the day of the election to

1 canvass the abstracts of votes cast from each county in the
2 merged area, and declare the results of the voting. The
3 commissioner shall at once issue certificates of election to
4 each person declared elected, and shall certify to the merged
5 area board in substantially the manner prescribed by section
6 50.27 the result of the voting on any public question submitted
7 to the voters of the merged area. Members elected to the board
8 of directors of a merged area shall qualify by taking the oath
9 of office prescribed in [section 277.28](#).>
10 23. By renumbering as necessary.

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